



This is an example of a “True PDF” (also known as text-based or digitally created PDFs).

This PDFs was created using Microsoft Word using the “print to PDF” function. “True PDF’s” consist of both text and images. We should think about these PDFs having two layers – one layer is the image and a second layer is the text. The image layer shows what the document will look like if it is printed to paper. The text layer is searchable text that is carried over from the original Word file into the new PDF file (the technical term for this layer is “extracted text”). There is no need to make it searchable and the new PDF will have the same text as the original Word file. An example of True PDFs that federal defenders and CJA panel attorneys will be familiar with are the pleadings filed in CM/ECF. The pleading is originally created in Word, but then the attorney either saves it as PDF or prints to PDF and they file that PDF document with the court. Using either process, there is now a PDF file created with an image layer plus text layer. **In terms of usability, this is the best type of PDF to receive in discovery as it will have the closest to text searchability of the original file.**



This is an example of an “Image-based PDF” (also known as image-only PDFs).

Image-based PDFs are typically created through scanning paper in a copier, taking photographs or taking screenshots. To a computer, they are images. Though we humans can see text in the image, the file only consists of the image layer but not the searchable text layer that True PDFs contain. As a result, we cannot use a computer to search the text we see in the image as that text layer is missing. There are times when discovery is produced, it will be in an image-based PDF format. When you come across image-based PDFs, ask the U.S. Attorney’s Office in what format was that file originally. Second, ask if they have it in a searchable format and specifically if they have it in a digitally created, True, Text-based PDF format. They may not, as they often receive PDFs from other sources before they provide them to you, but you will want to know what is the format in which they have it in, and what is the original format of the file (as far as they know).



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